

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: CECILIA CASTELLANOS
HEARING DATE: 09/22/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-06824

CASE NAME: DISCOVER BANK VS. SAGAR BONDADA, JR.

*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION

FILED BY:

TENTATIVE RULING:

Plaintiff moves to set aside a stipulation in this matter and enter a judgment pursuant to the stipulation, based on failure of defendant to comply with the terms of the stipulation.

Defendant has filed no opposition. Three previous hearings were continued because defendant had not been given notice of the hearing. It still appears that plaintiff, who has not filed a responsive pleading in the matter, has not been given notice of the hearing, because of the lack of an address for service in the court file.

The stipulation, (filed December 15, 2025), however, constitutes a first appearance for this purpose, and the defendant's signature is followed by his name, Sagar Bondada, Jr., and his mailing address, 2974 Chevy Way, San Pablo, CA 94806-3216. This is sufficient to enable the Court to give notice to plaintiff of the new hearing date, and enable plaintiff to serve, and file proof of service with the court. (Plaintiff previously served the motion at this same address.)

The hearing is continued to January 12, 2027, 9:00 a.m., with the Court to serve notice at 2974 Chevy Way, San Pablo, CA 94806-3216.

2. 9:00 AM CASE NUMBER: L24-03844

CASE NAME: CONNECT BY AMERICAN FAMILY VS. FATIMA CARLOS

*HEARING ON MOTION FOR DISCOVERY TO DEEM REQUEST FOR ADMISSIONS ADMITTED AND FOR SANCTIONS IN THE AMOUNT OF \$585.00

FILED BY: CONNECT BY AMERICAN FAMILY

TENTATIVE RULING:

Plaintiff moves to deem admitted Requests for Admission, which were served on defendant and to which no response was made.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. (Code Civ. Proc. § 2033.280(b).)

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory, unless the party subject to the sanction acted with substantial justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The Court's ability to grant the motion, however, is affected by a drafting error in Request Number 2. It states: "Admit that on or about 8/17/22, you [ENTER LOSS DESCRIPTION]." Number 3 states "Admit that due to the above negligence, Plaintiff issued payment under the Insured's policy in the Amount of \$15771.15." The error in Number 2 renders it unintelligible, and Number 3 relies on the "above" admission, and thus also is unintelligible.

The motion to seem admitted is granted as to Requests for Admission Numbers 1 and 4 and is denied as to Numbers 2 and 3.

Plaintiff's request for sanctions in the amount of \$585 is granted in part: it is reduced to \$292.50.